

25SMCV01722 25SMCV01722

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

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MOTION

Protective

Order

MOVING PARTY

Plaintiff

Susan Neuberg

OPPOSING PARTY

Defendant

Costco Wholesale Corporation

BACKGROUND

On April 3, 2025, Plaintiff Susan Neuberg ("Plaintiff") filed suit against Defendants Costco Wholesale Corporation and Carl Barrio ("Defendants") alleging two causes of action for premises liability and negligent hiring.

On June 4, 2026, the Court granted Plaintiff's motion for a trial preference, and set the trial for September 28, 2026.

Plaintiff now moves for a protective order to quash Costco's demand for expert witness exchange and for monetary sanctions. Costco opposes the motion and requests monetary sanctions.

ANALYSIS

I.

Motion for Protective Order

"A demand for an exchange of information concerning expert trial witnesses shall be in writing and shall identify, below the title of the case, the party making the demand. The demand shall state that it is being made under this chapter. The demand shall specify the date for the exchange of lists of expert trial witnesses, expert witness declarations, and any demanded production of writings. The specified date of exchange shall be 50 days before the initial trial date, or 20 days after service of the demand, whichever is closer to the trial date, unless the court, on motion and a showing of good cause, orders an earlier or later date of exchange." (Code Civ. Proc., § 2034.230, subds. (a)-(b).)

"A party who has been served with a demand to exchange information concerning expert trial witnesses may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040. The court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. The protective order may include, but is not limited to, one or more of the

following directions: (1) That the demand be quashed because it was not timely served." (Code Civ. Proc., § 2034.250, subds. (a)-(b).)

Here, on June 4, 2026, the Court granted Plaintiff's motion for a trial preference and scheduled the case for trial on September 28, 2026. Fifty days before the September 28, 2026 trial is Sunday, August 9.

On July 20, 2026, Defendants electronically served the Demand for Expert Witness Exchange, specifying an exchange date of Monday, August 10, which Plaintiff objected to on August 10.

Plaintiff argues that because August 9 falls on a Sunday, Costco improperly rounded the date forward to August 10, which is technically less than 50 days before trial, in violation of the statute. Further, Plaintiff argues, that because the demand was served electronically, an additional 2 court days should have been added to account for electronic service.

In *Staub v. Kiley* (2014) 226 Cal.App.4th 1437, 1447, the Court of Appeal explained that where there is not an unreasonable delay, gamesmanship, or a comprehensive attempt to thwart legitimate and necessary discovery, the exclusion of such evidence is not justified.

Similarly, here, the Court does not find Costco's conduct, which at best amounts to a slight miscalculation of the rounding rules for the dates, constitutes gamesmanship or is otherwise an "unreasonable" failure to comply with the expert designation rules, warranting the exclusion of Defendants' expert witnesses. (See *Staub*, *supra*, 226 Cal.App.4th at p. 1447 ["The record here does not support a determination that plaintiffs so unreasonably failed to timely disclose their experts that exclusion of all expert testimony was warranted"].)

To the contrary, any gamesmanship here lies with Plaintiff, who, after successfully obtaining a preference trial now appears to be employing "gotcha" litigation tactics to try to deprive Defendants' of their expert witnesses over a matter of three days.

II.

Sanctions

The parties each seek monetary sanctions against the other in connection with the motion and opposition.

Because the Court denies Plaintiff's motion, it similarly denies Plaintiff's request for sanctions.

Costco requests sanctions on the grounds that, while Plaintiff met and conferred, Plaintiff failed to adequately meet and confer in good faith prior to filing the motion, which amounts to a misuse of the discovery process.

The Court does not find monetary sanctions warranted on the record before it.

CONCLUSION AND ORDER

For the foregoing reasons, the Court denies Plaintiff's motion for a protective order quashing Defendants' demand for an exchange of expert information under Code of Civil Procedure section 2034.230.

Further, the Court denies both parties' requests for monetary sanctions.

Further, the Court admonishes both parties to work collaboratively in good faith toward preparing this case for trial on the merits and to refrain from any further gamesmanship tactics which may delay the start of the trial, notwithstanding the trial preference.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: September 16, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court